by the disbursing officer; Commanding Officer, U.S. Navy Finance Center (Retired Pay Department); or Commandant of the Marine Corps (CDH), of the occurrence of any of the following:

(1) Death of the incompetent.

(2) Death or disability of the trustee appointed.

(3) Receipt of notice that a committee, guardian, or other legal representative has been appointed for the incompetent by a court of competent jurisdiction.

(4) Receipt of notification by the Director of the failure of a trustee to render the reports required.

(5) Receipt of notification by the Director that there is probable cause to believe that there is improper use of moneys received on behalf of the incompetent.

(6) Receipt of notification by the Director that a board of medical officers has found the former incompetent mentally capable of managing his affairs. The Director may, at his discretion, accept the findings of a Veterans' Administration or Public Health Service hospital, or other public or private institution, that a person formerly found incompetent is competent.

(7) That the Director deems it to be in the best interest of the incompetent.

In the event of termination of payments under subparagraph (2), (4), (5), or (7) of this paragraph, the Director may, if deemed appropriate, appoint a successor trustee, under the terms of this part.

(c) *Notification by the disbursing officer to the Director of all payments made to trustee.* The disbursing officer carrying the active duty pay account of an incompetent will report to the Director all payments made to a trustee and will notify the Director when the accounts of the incompetent have been transferred to another activity.

(d) *Notification by the Commanding Officer, U.S. Navy Finance Center, and the Commandant of the Marine Corps (CDH) to the Director of change in status in the pay account of the incompetent.* The Commanding Officer, U.S. Navy Finance Center (Retired Pay Department), and the Commandant of the Marine Corps (CDH) will notify the Director if the retired pay is waived in favor of Veterans' Administration compensation and, if so waived, the name and address of the individual signing the waiver and the address of the Veterans' Administration Regional Office making payment of the Veterans' Administration compensation. In addition, the said officers will notify the Director of any other change in the status of the retired pay account of the incompetent, such as caused by death; or appointment of a legal guardian, committee, or other legal representative by a court of competent jurisdiction. Said officers will furnish the Director with a report as to amounts of pay paid trustees annually or as requested or at the time of change of status of the trusteeship.

§ 726.8 Requirement that a trustee shall file a final accounting report at termination of trusteeship.

When payments under this part are terminated, the trustee shall file a final accounting report with the Director. When the final accounting report has been approved, the trustee shall be discharged by the Director and the surety released on its bond. In the event of death or disability of a trustee, the final accounting report will be filed by his legal representative.

§ 726.9 Authority of the Judge Advocate General to issue implementing instructions.

All powers given the Director in this part are also vested in the Judge Advocate General. The Judge Advocate General has been authorized to issue such further instructions, not in conflict with this part as may be necessary from time to time to give full force and effect to this part.

By direction of the Secretary of the Navy.

[SEAL] ROBERT D. POWERS, Jr.,
Rear Admiral, U.S. Navy, Acting Judge Advocate General of the Navy.

FEBRUARY 18, 1963.

[F.R. Doc. 63-2082; Filed, Feb. 27, 1963; 8:45 a.m.]

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER E—REGULATIONS UNDER SPECIFIC ACTS OF CONGRESS OTHER THAN THE FEDERAL FOOD, DRUG, AND COSMETIC ACT

PART 281—ENFORCEMENT OF THE TEA IMPORTATION ACT

Tea Standards 1963–1964

Pursuant to the authority vested in the Secretary of Health, Education, and Welfare by the Tea Importation Act (secs. 2, 10, 29 Stat. 607, 41 Stat. 712, 57 Stat. 500; 21 U.S.C. 42, 50), and delegated to the Commissioner of Food and Drugs by the Secretary (25 F.R. 8625), the regulations for the enforcement of this act (21 CFR 281.19) are amended by changing § 281.19(a) to read as follows:

§ 281.19 Tea standards.

(a) Samples for standards of the following teas, prepared, identified, and submitted by the Board of Tea Experts on February 6, 1963, are hereby fixed and established as the standards of purity, quality, and fitness for consumption under the Tea Importation Act for the year beginning May 1, 1963 and ending April 30, 1964:

(1) Formosa Oolong.

(2) Black tea (all black tea except Formosa and Japan black and Congou type).

(3) Formosa black (Formosa black and Congou type).

(4) Japan black.

(5) Japan green.

(6) Canton type (all Canton type teas including scented Canton and Canton Oolong types).

These standards apply to tea shipped from abroad on or after May 1, 1963. Tea shipped prior to May 1, 1963, will be governed by the standards which became effective May 1, 1962 (27 F.R. 3199).

Notice and public procedure are not necessary prerequisites to the promulgation of this order, and I so find, since the amendment is based upon the recommendation of the Board of Tea Experts, which is comprised of experts in teas drawn from the Food and Drug Administration and the tea trade, so as to be representative of the trade as a whole.

Effective date. This order shall become effective May 1, 1963.

(Secs. 2, 10, 29 Stat. 607, 41 Stat. 712, 57 Stat. 500; 21 U.S.C. 42, 50)

Dated: February 20, 1963.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 63-2126; Filed, Feb. 27, 1963; 8:49 a.m.]

Title 32A—NATIONAL DEFENSE, APPENDIX

Chapter I—Office of Emergency Planning

REVOCATION OF CERTAIN DEFENSE MOBILIZATION ORDERS AND EMERGENCY PREPAREDNESS ORDERS

CROSS REFERENCE: For revocation of Defense Mobilization Orders 1 through 20 see Executive Order 11094; for Emergency Preparedness Order 10 see Executive Order 11094; for Emergency Preparedness Order 12 see Executive Order 11091; and for Emergency Preparedness Orders 11, 13, and 14 see Executive Order 11095, Title 3, *supra*.

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2951]

[1548311]

MONTANA

Fort Peck Game Range; Change of Name to Charles M. Russell National Wildlife Range

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The name of the Fort Peck Game Range, heretofore established by Executive Order No. 7509 of December 11, 1936, is hereby changed to Charles M. Russell National Wildlife Range.

JOHN A. CRAVER, Jr.,
Acting Secretary of the Interior.

FEBRUARY 25, 1963.

[F.R. Doc. 63-2164; Filed, Feb. 27, 1963; 8:51 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 14661, RM-227; FCC 63-184]

PART 3—RADIO BROADCAST SERVICES

Use of Automatic Logging Devices

1. On June 6, 1962, the Commission adopted a notice of proposed rule making, FCC 62-609, in the above entitled matter which was published in the FEDERAL REGISTER on June 13, 1962 (27 F.R. 5614).

2. Commission rules require that each standard, FM and TV broadcast station maintain, in addition to other records, program and operating logs. By action taken on October 3, 1962, the Commission amended §§ 3.111, 3.281, 3.581, and 3.663 of its rules to permit the maintenance of program logs by automatic means. The subject proceeding involves the next successive step; i.e., the maintenance of the operating log by automatic means.

3. On January 13, 1961, the National Association of Broadcasters (NAB) filed a petition for the institution of rule making in this matter. In adopting the notice of proposed rule making we noted that the information to be entered in the operating log was contained in various sections of the rules. As an aid to the proper maintenance of the technical logs we also proposed to amend the rules to require both an operating log and a maintenance log and to repeat in these requirements all of the information to be logged. We indicated, in addition, our concern with the laxity in compliance with operating requirements and equipment performance standards and proposed that a supervising radio operator make entries concerning the maintenance and operation of the station equipment in the maintenance log on a daily basis.

4. Only a few of the comments received were opposed to the use of automatic logging devices. Many comments of a helpful nature were received from broadcast licensees and equipment manufacturers. In general, the majority of comments were addressed to our proposal that the supervisory radio operator conduct an inspection of all transmitting equipment once each day and were opposed to such a requirement for more than five days per week.[1] Some of the comments and suggestions were on matters beyond the scope of this proceeding and were therefore not considered herein.

5. We have proposed a requirement (§§ 3.111(b)(2), 3.281(b)(2), 3.581(b)(2) and 3.663(b)(2)) of an entry for each interruption of the carrier wave, its cause and duration, followed by the signature of the person restoring operation. The University of Missouri, among others, points out that the operator on duty, who normally restores operation, is required to sign the log at the beginning and end of his tour of duty and that a signature should be required only if some other person restores operation. It is also suggested that for momentary overloads where restoration is automatic, no entry be required. We believe these suggestions have merit and modify the pertinent sections accordingly.

6. The National Broadcasting Company, Inc. (NBC) notes that the requirement to log certain values "each half-hour" could be construed as requiring that these readings be made precisely on the hour and half hour during busy periods. They suggest that the section be so worded to provide for the taking of readings at the commencement of operation and thereafter at intervals not to exceed a half-hour. We believe that this suggestion will provide greater clarity to the rule and the language is so modified.

7. It has been suggested that proposed § 3.111(b)(3), etc. require the logging of readings after adjustment of primary line voltage and after all readings are taken. With this we cannot agree. If line voltage fluctuations are of such magnitude as to indicate improper operation, correction of this condition before the taking of readings will destroy one desirable feature of log keeping, i.e., the indication of improper operation.

8. In § 3.111, it is proposed to continue the requirement of logging final stage plate voltage and plate current and also antenna or common point current. While the rules do not specifically so state, it has always been intended and presumably understood that antenna current readings are to be taken during the absence of modulation. This is so because standard broadcast stations are allocated on the basis of carrier power. While we recognize that the continuance of this requirement may make automatic logging of these particular parameters a bit more difficult, we are convinced that the problem is not without solution and therefore will amend this section to provide that these readings be made without modulation.

9. As noted in the notice of proposed rule making, we have rejected the proposal that the logging of frequency monitor readings for AM and FM stations be relaxed. However, many comments relating to frequency monitor requirements for TV stations were received, the majority opposing proposed § 3.663(c) (1) and (4) on this subject. In view of the outstanding proceeding (Docket No. 13854) relating to the subject TV frequency monitors, we are deleting these proposed sections.

10. As previously mentioned the majority of comments received were directed toward the proposal that an operator holding a radio-telephone first-class operator's license (or second-class for certain non-commercial educational FM stations) at each standard-broadcast and FM station be required to make a daily inspection of all transmitting equipment. Many viewed this proposal as expensive and unnecessary. Many more, however, objected to the daily inspection when, under present practice, the "chief engineer" of a station is normally on duty five (or at most six) days a week and, hence, stations would be forced to hire an additional employee to satisfy this one requirement. By our proposal, we did not intend to increase the number of technical operators employed at a station, but simply to insist, that more time and attention be paid to the technical details of station operation. As a first step in this direction, we will require a radio-telephone first-class operator, in effect, to certify that the operation is in accordance with the Commission rules and the station authorizations or the extent to which compliance is not attained. We will, however, modify our proposal to provide that the inspection be made in no event less than five days each week. In this regard some parties point out that there appears to be a discrepency between the intent of the notice (paragraph 9) and the rules as proposed. They state that the intention was to require a daily inspection only for those stations presently exempted from the requirement of a first-class operator on duty at all times but that the rules appear to require this daily inspection at all stations. Others urge that in any event stations which have a first-class operator on duty or are authorized remote control operation be excluded from this requirement. Our intention in this matter was to require the daily inspection at all stations and we are rewording the rule to clarify this.

11. We come now to the subject of automatic devices for recording entries in the operating log. Technically, such devices are quite feasible and the only consideration from our viewpoint is the necessary assurance that the equipment

[1] The parties filing comments and data were as follows: Radio Brazosport, Inc., KBRZ, Freeport, Texas; Bauer Electronics Corp., San Carlos, Calif.; Bell Broadcasting Co., KTEM, Temple, Texas; Mitchell Broadcasting Ass'n., Inc., KORN, Mitchell, S. Dak.; Meredith Broadcasting Co., KCMO, Kansas City, Mo.; General Electronics Laboratories, Inc., Cambridge, Mass.; Fisher's Blend Station, Inc., KOMO, Seattle, Wash.; Mesabi Western Corp., KIDO, Boise, Idaho; Capitol Broadcasting Corp., WCAW, Charleston, W. Va.; American Broadcasting Company; National Association of Broadcasting; Springfield Broadcasting Company, KGBX, Springfield, Mass.; A. Earl Cullum, Jr., Dallas, Texas; Texas Association of Broadcasters; International Good Music, Inc., KGMI, Bellingham, Wash.; WKAN Radio, Kankakee, Ill.; Golden Gate Broadcasting Corp., KSAN, San Francisco, Calif.; Curators of the University of Missouri, KOMU-TV, Columbia, Mo.; WHAS, Inc., Louisville, Ky.; Columbia Pictures Electronics Co., Inc., KCPX, Salt Lake City, Utah; WAPA-TV Broadcasting Corp., WAPA-TV, San Juan, P.R.; The Washington Post Company, WTOP, Washington, D.C.; Newhouse Broadcasting Corp., WSYR, Syracuse, N.Y.; General Electric Company; Radio Station KNOW, Austin, Texas; Por Favor, Inc., KUKA, San Antonio, Texas; National Association of Broadcast Employees and Technicians, Chicago, Ill.; Taft Broadcasting Co., WKRC, Cincinnati, Ohio; Columbia Broadcasting Company; The Evening News Ass'n., WWJ, Detroit, Michigan; WWDC, Inc., Washington, D.C.; Time-Life Broadcast, Inc.; WKY Television System, Inc., WKY, Oklahoma City, Oklahoma; Radio Station WHBL, Sheboygan, Wis.; WBC, Inc.; Chem-Air, Inc., KPAM, Portland, Oregon. Letters were also received from the following parties: Esterline Angus Instrument Co., Inc., Indianapolis, Ind.; Melvin L. Aldridge, Detroit, Mich.; WVMC Radio, Mt. Carmel, Ill.; WCER, Charlotte, Mich.; Daystrom, Inc., Archbald, Pa.; The Forman Company, Monmouth, Ill.